

The McAlester City Council met in a Regular session on Tuesday, February 27, 2024, at 6:00 P.M. after proper notice and agenda was posted, February 23, 2024, at 1:16 P.M.

MRHC Chaplain Louis Reynolds gave the invocation and lead the Pledge of Allegiance.

Call to Order

Mayor Browne called the meeting to order.

Roll Call

Council Roll Call was as follows:

Attending:

Weldon Smith, Chris Stone, Randy Roden, Billy Jack Boatright,
Kevin Beaty & John Browne
Justin Few

Absent:

John Browne, Mayor

Presiding:

Brett Brewer, Fire Chief; Jayme Clifton, Community Development
Director; Sherri Swift, CFO; Adrian O’Hanlon, Public Information
Officer; Nick Manning, Utilities Director; Justice Adair, I.T.
Computer Support; John Tyler Hammons, City Attorney and Cora
Middleton, City Clerk

Citizens Comments on Non-Agenda Items

Residents may address Council regarding an item that is not listed on the Agenda. Residents must provide their name and address. Council requests that comments be limited to five (5) minutes.

John Titsworth, 1010 Douglas addressed the Council regarding the Oklahoma Turnpikes Authority’s intent to increase access of the Turnpike system throughout the State. He mentioned some of the improvements that were planned, and the different ways citizens could now pay for driving on the turnpikes. He distributed informational brochures to the Council and stated that he could get more and leave at City Hall for the citizens’ convenience.

Consent Agenda

All matters listed under the Consent Agenda are considered to be routine by the City Council and will be enacted by one motion. There will not be separate discussion of these items. If discussion is desired, that item will be removed from the Consent Agenda and will be considered separately.

- A. Approval of the Minutes from the February 13, 2024, Regular Meeting of the McAlester City Council. *(Cora Middleton, City Clerk)*
- B. Approval of Claims for February 7, 2024, through February 20, 2024. *(Sherri Swift, Chief Financial Officer)* In the following amounts: General Fund - \$142,735.60; Parking Authority - \$323.00; Nutrition - \$141.12; Airport Grant - \$227,358.52; Educational Fund - \$52,569.76; Tourism Fund - \$128.15; E-911 - \$495.14; Economic Development – (\$397.66); Grants & Contributions - \$11,224.27; CDBG Grants Fund - \$1,826.60; Fleet Maintenance - \$7,424.39; Dedicated Sales Tax-MPWA - \$500.00; CIP Fund - \$58,628.77; Child Abuse Response Fund - \$1,935.04; Stormwater Fund - \$4,515.25; OWRB Debt Fund - \$659,642.32; Infrastructure Fund - \$46.69; MRHC-Cancer Center Fund - \$52,569.76 and MPWA – DWSRF Projects - \$340.76.
- C. Discussion and possible action to approve an aircraft hangar lease between the City of McAlester/McAlester Airport Authority and Arkansas Oklahoma Railroad. *(Chase Tindle, Airport Manager)*
- D. Discussion and possible action, to indefinitely postpone Tort Claim No. 214304-1-LN filed by the City of McAlester. *(Cora Middleton, City Clerk)*

- E. Discussion and possible action, to approve and authorize the Mayor to sign the 2ND Amendment to the Advanced Data Processing, Inc. (ADPI) billing agreement. *(Brett Brewer, Fire Chief)*

- F. Discussion and possible action, to concur with the Mayor's reappointment of Martha (Marti) Fields to the McAlester Regional Health Center Authority for a term to expire February 28, 2030. *(Cora Middleton, City Clerk)*

Councilman Roden requested that Item "F" be removed for individual consideration.

Vice-Mayor Smith moved to approve Consent Agenda items "A through E." The motion was seconded by Councilman Boatright, and the vote was taken as follows:

AYE: Councilmembers Smith, Boatright, Stone, Beaty, Roden & Mayor Browne
NAY: None

Mayor Browne declared the motion carried.

Items Removed from Consent Agenda

- F. Discussion and possible action, to concur with the Mayor's reappointment of Martha (Marti) Fields to the McAlester Regional Health Center Authority for a term to expire February 28, 2030. *(Cora Middleton, City Clerk)*

Councilman Roden commented that he had wanted to ask Ms. Fields about the letter that he had received from the Mary Shannon, Chairperson for MRHCA Board of Trustees. He then moved to table the reappointment of Martha (Marti) Fields to the McAlester Regional Health Center Authority for a term to expire February 28, 2030. The motion was seconded by Councilman Stone, and the vote was taken as follows:

AYE: Councilmembers Roden, Stone & Boatright
NAY: Councilmembers Beaty, Smith & Mayor Browne

Mayor Browne declared the motion failed.

Mayor Browne moved to approve the reappointment of Martha (Marti) Fields to the McAlester Regional Health Center Authority for a term to expire February 28, 2030. He briefly explained that there were specific requirements for the McAlester Regional Health Center Authority Board. The motion was seconded by Vice-Mayor Smith, and the vote was taken as follows:

AYE: Councilmembers Smith, Stone, Beaty & Mayor Browne
NAY: Councilmembers Roden & Boatright

Mayor Browne declared the motion carried.

Councilman Boatright moved to open a Public Hearing to address three (3) proposed ordinances. The motion was seconded by Vice-Mayor Smith, there was no discussion, and the vote was taken as follows:

AYE: Councilmembers Boatright, Smith, Roden, Beaty, Stone & Mayor Browne
NAY: None

Mayor Browne declared the motion carried, and the Public Hearing was opened at 6:10 P.M.

Public Hearing

All persons interested in any ordinance listed under Scheduled Business shall have an opportunity to be heard in accordance with Article 2, Section 2.12(b) of the City Charter.

AN ORDINANCE OF THE CITY OF MCALESTER, OKLAHOMA; AMENDING MCALESTER CITY CODE CHAPTER 62 LAND DEVELOPMENT, PLANNING, ZONING AND SUBDIVISIONS, SECTION 62-97 POWERS RELATIVE TO

EXCEPTIONS; REPEALING ALL CONFLICTING ORDINANCES, AND PROVIDING FOR SEVERABILITY.

AN ORDINANCE AMENDING THE GENERAL ZONING ORDINANCE AND ACCOMPANYING MAP THERETO KNOWN AS GENERAL ZONING ORDINANCE NO. 1843 (1989), BY CHANGING THE CLASSIFICATION OF THE ZONING DISTRICT FOR LOT FOUR (4), BLOCK SIX (6), CITY OF MCALESTER, NOW KNOWN AS NORTH MCALESTER, PITTSBURG COUNTY, STATE OF OKLAHOMA, FROM I-2 HEAVY INDUSTRIAL DISTRICT TO R-1B SINGLE-FAMILY RESIDENTIAL DISTRICT.

AN ORDINANCE OF THE CITY OF MCALESTER, OKLAHOMA, AMENDING ORDINANCE NO. 2781 WHICH ESTABLISHED THE BUDGET FOR FISCAL YEAR 2023-2024; REPEALING ALL CONFLICTING ORDINANCES; PROVIDING FOR A SEVERABILITY CLAUSE; AND DECLARING AN EMERGENCY.

There were no comments or inquiries, and a motion to close the Public Hearing was made by Councilman Beaty. The motion was seconded by Councilman Boatright, and the vote was taken as follows:

AYE: Councilmembers Beaty, Boatright, Smith, Stone, Roden & Mayor Browne
NAY: None

Mayor Browne declared the motion carried, and the Public Hearing was closed at 6:11 P.M.

Scheduled Business

1. Discussion and possible action, accepting the total bid amount of \$1,805,294.00 from S3 Construction, LLC and authorize the mayor to sign the Notice of Award and Contract for the DWSRF Project #10 Kiamichi & Carl Albert Water System Improvements. (*Nick Manning, Public Utilities Director/ISG*)

Executive Summary

The recommendation is to accept the total bid amount of \$1,805,294.00 from S3 Construction, LLC and authorize the mayor to sign the Notice of Award and Contract for the DWSRF Project #10 Kiamichi & Carl Albert Water System Improvements.

Director Manning addressed the Council explaining that this project had been bid on January 18, 2024, with three (3) contractors submitting bids. He stated that after discussion it was decided to recommend that the Council accept the bid from S3 Construction, LLC in the amount of \$1,805,294.00 and authorize the Mayor to sign the Notice of Award and Contract for DWSRF Project #10 Kiamichi and Carl Albert Water System Improvements.

After a brief discussion concerning the contractors previous work for the City, a motion to accept the bid from S3 Construction, LLC in the amount of \$1,805,294.00 and authorize the Mayor to sign the Notice of Award and Contract for DWSRF Project #10 Kiamichi and Carl Albert Water System Improvements was made by Councilman Boatright. The motion was seconded by Councilman Roden, and the vote was taken as follows:

AYE: Councilmembers Boatright, Roden, Beaty, Smith, Stone & Mayor Browne
NAY: None

Mayor Browne declared the motion carried.

2. Discussion and possible action on an Ordinance amending the general zoning ordinance and accompanying map thereto known as General Zoning Ordinance No. 1843 (1989) by changing the classification of the zoning district for Lot Four (4), Block Six (6), City of McAlester, now known as North McAlester, Pittsburg County, State of Oklahoma, from I-2 Heavy Industrial District to R-1B Single-Family Residential District. (*Jayne Clifton, Community Development Director*)

Executive Summary

Motion to act upon and approve the above Ordinance changing the classification of the zoning district for the property identified in the Ordinance from I-2 Heavy Industrial District to R-1B Single-Family Residential District; and authorizing the mayor to sign the ordinance.

Director Clifton addressed the Council explaining that the house on this property was built in 1952 and the applicant's family had owned and lived in the house since 1974. She stated that the structure predated the current zoning and land development code. She commented that the nonconforming status had made selling the property difficult. She added that the Planning Commission had met on February 20, 2024 and had voted unanimously to recommend the applicant's rezoning request be approved as presented.

There was a brief discussion concerning the zoning for the surrounding properties, and if the area could be blanket rezoned.

ORDINANCE NO. 2798

AN ORDINANCE AMENDING THE GENERAL ZONING ORDINANCE AND ACCOMPANYING MAP THERETO KNOWN AS GENERAL ZONING ORDINANCE NO. 1843 (1989), BY CHANGING THE CLASSIFICATION OF THE ZONING DISTRICT FOR LOT FOUR (4), BLOCK SIX (6), CITY OF MCALESTER, NOW KNOWN AS NORTH MCALESTER, PITTSBURG COUNTY, STATE OF OKLAHOMA, FROM I-2 HEAVY INDUSTRIAL DISTRICT TO R-1B SINGLE-FAMILY RESIDENTIAL DISTRICT.

A motion to approve **ORDINANCE NO. 2798**, rezoning the affected property from I-2 Heavy Industrial District to R-1B Single-Family Residential District was made by Councilman Roden. The motion was seconded by Councilman Beaty, and the vote was taken as follows:

AYE: Councilmembers Roden, Beaty, Smith, Stone, Boatright & Mayor Browne
 NAY: None

Mayor Browne declared the motion carried.

3. Discussion and possible action on an ordinance of the City of McAlester, Oklahoma, amending McAlester City Code, Chapter 62 Land Development, Planning, Zoning and Subdivisions, Section 62-97 Powers Relative to Exceptions; repealing all conflicting ordinances; and providing for severability. (*Jayne Clifton, Community Development Director*)

Executive Summary
 Motion to act upon and approve the above ordinance amending Section 62-97 Powers Relative to Exceptions; repealing all conflicting ordinances; providing for severability; and authorizing the mayor to sign the ordinance.

Director Clifton addressed the Council explaining that this amendment would allow minor variances for the Board of Adjustment to consider. She added that the Planning Commission had met on February 20, 2024 and voted unanimously to recommend the ordinance amendment to be approved as presented.

There was a brief discussion regarding this giving the Board of Adjustment the ability to consider the minor variances and if this was dealing with lots that were too small.

ORDINANCE NO. 2799

AN ORDINANCE OF THE CITY OF MCALESTER, OKLAHOMA; AMENDING MCALESTER CITY CODE CHAPTER 62 LAND DEVELOPMENT, PLANNING, ZONING AND SUBDIVISIONS, SECTION 62-97 POWERS RELATIVE TO EXCEPTIONS; REPEALING ALL CONFLICTING ORDINANCES, AND PROVIDING FOR SEVERABILITY.

Councilman Boatright moved to approve **ORDINANCE NO. 2799**, amending Section 62-97, powers relative to exceptions. The motion was seconded by Councilman Beaty, and the vote was taken as follows:

AYE: Councilmembers Boatright, Beaty, Roden, Smith, Stone & Mayor Browne
 NAY: None

Mayor Browne declared the motion carried.

4. Discussion and possible action on amending Ordinance No. 2781 which established the budget for fiscal year 2023-2024; repealing all conflicting ordinances; providing for a severability clause; and declaring an emergency. *(Sherri Swift, Chief Financial Officer)*
Executive Summary
A motion to approve the budget amendment ordinance.

CFO Swift addressed the Council explaining that this amendment moves the funds from the Emergency Fund to the CIP Fund that the Council had approved on May 4, 2023. To cover the repairs to the Water Treatment Plant.

ORDINANCE NO. 2800

AN ORDINANCE OF THE CITY OF McALESTER, OKLAHOMA, AMENDING ORDINANCE NO. 2781 WHICH ESTABLISHED THE BUDGET FOR FISCAL YEAR 2023-2024; REPEALING ALL CONFLICTING ORDINANCES; PROVIDING FOR A SEVERABILITY CLAUSE; AND DECLARING AN EMERGENCY.

There was no discussion, and a motion to approve **ORDINANCE NO. 2800** was made by Vice-Mayor Smith. The motion was seconded by Councilman Boatright, and the vote was taken as follows:

AYE: Councilmembers Smith, Boatright, Stone, Roden, Beaty & Mayor Browne
NAY: None

Mayor Browne declared the motion carried.

Councilman Beaty moved to approve the EMERGENCY CLAUSE. The motion was seconded by Vice-Mayor Smith, and the vote was taken as follows;

AYE: Councilmembers Beaty, Smith, Stone, Roden, Boatright & Mayor Browne
NAY: None

Mayor Browne declared the motion carried.

7. Discussion on Monthly Financial Update. *(Sherri Swift, Chief Financial Officer)*
Executive Summary
Discussion Only

CFO Swift stated that the financial update was as of January 31, 2024 and that the year was approximately 58.33% complete. She began the update with a review of the General Fund revenues and expenditures, and pointed out that a line showing the estimated TIF payment had been added to the form. She added that the expenditures were still being watched to insure that the City stayed within the Budget. She then reviewed the MPWA revenues and expenditures, commenting that expenditures were also being watched for this Fund. CFO Swift reviewed the Sales Tax and Use Tax receipts, the residential, commercial, wholesale and Water Districts revenues. She reviewed the Hotel/Motel tax receipts stating that they were lower than the previous month, but higher than last year. She reviewed the breakdown of the sales taxes received for the TIF area and commented that the receipts were the highest since the retail area had opened. She completed her update with a review of the Treasury Report.

There was a brief discussion concerning the Hotel/Motel tax collections, if there were many hotels that did not pay, the Oklahoma Tax Commission beginning to collect this tax for the City and if there was a penalty charged for any of the hotels that did not pay the tax by the required date.

No action was taken on this item.

5. Discussion and possible action concerning the McAlester Regional Health Center's Cancer Treatment Center. *(Randy Roden, City Council)*
Executive Summary

Mayor Browne stated that the City of McAlester did not own the Hospital and could not sell the Hospital.

Attorney Hammons commented that this was an ongoing concern and he advised everyone to be mindful of what they said.

Councilman Roden commented on the importance of the Cancer Center and the management of the Hospital.

Debbie Roden, 507 W. Stonewall addressed the Council expressing her concerns about the Hospital and Cancer Center.

Lisa Turney, 115 S. Sanders Road addressed the Council expressing her concerns about the Hospital and Cancer Center.

Kim Countz, 1052 House Road addressed the Council inquiring about who appointed the board members and who was on the Trust.

Cathy Thornton, 107 S. 14th, Hartshorne addressed the Council expressing her concerns about the Cancer Center and the Sales Tax.

Attorney Hammons explained the law that was passed in the sixties by the Legislature that allowed the State of Oklahoma, various counties, and some cities to establish Public Trusts. He explained that members of the Hospital Board were public officials and were subject to the Open Record Act.

Dr. Todd Bowden, 100 S. Main addressed the Council expressing his concerns regarding the Cancer Center.

Susan Old, 255 Redbird Drive; Richard Bowden, 3016 N. 6th Street; Misha Wolf, 602 NW Main; Debra Stone, 609 N. A Street; Steve Belcher, P.O. Box 1601, and Danny Barlow, 217 W. Jackson each addressed the Council expressing their concerns with the Cancer Center and the hospital.

No action was taken on this item.

6. Presentation of the Mayor's Annual State of the City Address. (*John Browne, Mayor*)
Executive Summary
Presentation

Mayor Browne delivered his Annual State of the City Address.

"That's some catch, that catch-22," he observed. "it's the best there is,"

"oh, our lives are changing every day. In every possible way. And oh, our dreams are never quite as it seems."

Paraphrasing the cranberries, our city is going through changes it seems every day.

Governing is a task which takes Sisyphean type effort and resolution, working hard to reach a pinnacle to only have the proverbial boulder roll right back down the other side. While for Sisyphus the toil is never ending, our city has hope for a better outcome. Each time we reach the apex we flatten the point a little bit which will eventually become a platform to allow us to stay on the top without rolling back down the mountain. We make small progress every year and are reaching a point wherein we still have some setbacks but not the type that are unmanageable.

That some catch that catch 22.

We are having the second-best year we have ever had as far as revenue goes. Last year was the only one better and it had some artificial help from the federal government's money that were remnants of the ARPA funds and others. So, it can reasonably be thought that this year may actually be a better year with organic growth instead of stimulus funds. So, what's the catch? Well, based on the original budget projection we are behind in revenue production. We are ahead, meaning spending less on expense spending and are in no danger of having to make drastic actions to maintain a balanced budget as required by state statute. Our administrative team have done a great

job to absorb this revenue decline without having to reduce services, increase rates, or harm our employees. They have done a remarkable job, such that citizens shouldn't even notice any change to our day-to-day operations. Of course, this wouldn't be the case if our fantastic city workers, non-uniform, and union, didn't have buy in to the adjustments. I feel I can speak for, not just myself, but the entire council when I say we have the best people any organization could ask for and our thanks go out to you all, we are grateful for everything you do to keep this city running. That is some catch that catch 22, we are having our second best, possibly our organically best year ever, while having to reduce our budget. To steal from Alanis Morissette "isn't it ironic."

"And when the night is cloudy there is still a light that shines on me. Shinin' until tomorrow, let it be."

Even though we are navigating through a small storm there is still some shining light. We are progressing very nicely with our water line replacement, we have invested approximately \$16 million of the \$32 million original amount. Along with the original voter approved amount, we received a grant for \$2 million to add to the project. This additional funding will allow us to replace the lines that run down main street. These lines have caused major problems in the past and in some areas are among the oldest in the system. Repairing these lines causes more problems than just being out of water. Main street is a heavily travel road and is part of the state highway system, in addition it also runs parallel to the railroad. Both of these facts can cause delayed time to repair due to, in some cases, two governmental agencies and one private business having to sign off on the work. I think it has been quite obvious that this replacement project, with just the work that has been done so far, we have reduced the major outages we have had in the past. As this project continues there will be a focus on replacing underperforming fire hydrants, especially around our schools.

"Reach out your hand if your cup be empty. If your cup is full, may it be again."

Another shining light for our community will be the city taking over operation of our water treatment plant accompanied by a revamping of the delivery system of the plant. I'll address the latter first. Our treatment plant is 40+ years old, we have done a lot to modernize the structure of the plant, it is now time to update the mechanical features. Our current power system runs on 2400 volts with pumps that are either on or off. This power system is rarely used anymore which makes it very difficult to get parts when needed. In fact, many of these parts have to be fabricated in order, this causes long delays in getting them which, of course, causes delays in getting the system back up. The high voltage needed for the current system also brings the need to use industrial electricians. Replacing the electrical system will also let us replace the pumps with variable speed pumps. As it sets now our pumps are either open full blast or off. A problem that can arise from this is called hydraulic hammering where in a full force of volume and pressure hit all at once. This is similar to what happens when air is in the lines when you turn your kitchen faucet on. This hammering can cause more problems considering the age of much of our infrastructure.

The former item mentioned, the city taking back operation of the plant, will provide some benefits that have been unavailable to us. First, we will have direct communication with the operators of the plant since they will be our employees. We have also moved the administrators of our utility department to the plant building thereby removing another level of access to immediate data and oversight. An additional benefit to this is that local vendors will now have the opportunity to bid on chemical supplies. Not only is this good for our economy, it also provides quicker access to chemicals when needed. All these projects taken together should make noticeable differences in delivery and quality of water.

On the economic development front we are having a good year with the expectation that the coming year will be even better. Our TIF is on schedule to pay off a year early. Once paid off this will add approximately \$1 million back into our budget. Another success is manufacturing company Loren Cook has opened up a plant here in McAlester, this brings 40-50 new, well-paying jobs to our community. Quik trip will begin their building any day now. This will also bring in a number of good paying jobs. Berry Plastics, through the Oklahoma Department of Commerce who have been great partners for the city, is expanding, adding over 20 new jobs. These successes along with some very promising contacts, one of which we will, hopefully be able to announce soon, are bringing good paying jobs into the city which helps attract quality of life investments.

"It just takes some time, you're in the middle of the ride. Everything, everything will be just fine.

Everything, everything will be all right, all right.”

Finally, I’m a little bittersweet as I write this State of the City report as it will be my last one. I am term limited out so the next report will be from a new mayor. I urge everyone to get registered to vote, get their friends and family registered if they aren’t already, then make sure they go vote. It is the single greatest right we have and to not exercise it is an affront to those that have fought for these rights. In addition to it being the right thing to do, remember what Plato once said, “one of the penalties of refusing to participate in politics is that you end up being governed by your inferiors.”

In closing a song lyric that makes me happy. “Rise up this morning, smiled with the rising sun. Three little birds pitch by my doorstep. Singing sweet songs of melodies pure and true. Saying, “this is my message to you-ou-ou.”

Singing, “don’t worry about a thing. Cause every little thing is gonna be alright”

No action was taken on this item.

New Business

Any matter not known, or which could not have been reasonably foreseen prior to the time of posting the Agenda in accordance with Sec. 311.9, Title 25, Oklahoma State Statutes.

There was no new business.

City Manager’s Report

- Report on activities for the past two weeks.

Manager Andren commented that the City Manager’s report was in the back of the binders. He stated that they were continuing to work on it and getting it to show the year after year information. He added if there was anything the Council wanted to see, to let him know and the report would be posted on the City’s website and Facebook page.

Remarks and Inquiries by City Council

Councilmen Smith, Stone, Roden, Boatright, and Beaty did not have any comments or inquiries for the evening.

Mayor’s Comments and Committee Appointments

Mayor Browne had no comments for the evening.

Recess Council Meeting

Vice-Mayor Smith moved to recess the Regular Meeting and convene the Authorities. The motion was seconded by Councilman Beaty. There was no discussion, and the vote was taken as follows:

AYE: Councilmembers Smith, Beaty, Roden, Boatright, Stone & Mayor Browne
NAY: None

Mayor Browne declared the motion carried, and the meeting was recessed at 7:51 P.M.

Reconvene Council Meeting

The Regular Meeting was reconvened at 7:53 P.M.

Vice-Mayor Smith moved to recess the Regular Meeting for an Executive Session in accordance with Title 25, Section 307.C.11; for the purposes of conferring on matters pertaining to economic development, including the transfer of property, financing, or the creation of a proposal to entice a business to locate within their jurisdiction if public disclosure of the matter discussed would interfere with the development of products or services or if public disclosure would violate the confidentiality of the business and in accordance with Title 25, Section 307.B.4; for confidential communications between a public body and its attorney concerning a pending investigation, claim,

or action if the public body, with the advice of its attorney, determines that disclosure will seriously impair the ability of the public body to process the claim or conduct a pending investigation, litigation, or proceeding in the public interest. The motion was seconded by Councilman Boatright, and the vote was taken as follows:

AYE: Councilmembers Smith, Boatright, Stone, Roden, Beaty & Mayor Browne
NAY: None

Mayor Browne declared the motion carried.

Executive Session

Recess into Executive Session in compliance with Title 25 Section 307 C.11, and Section 307 C.4, et seq. Oklahoma Statutes, to wit:

- 1) Pursuant to 25 OS 307 (C) (11): for the purposes of conferring on matters pertaining to economic development, including the transfer of property, financing, or the creation of a proposal to entice a business to locate within their jurisdiction if public disclosure of the matter discussed would interfere with the development of products or services or if public disclosure would violate the confidentiality of the business.
- 2) Pursuant to 25 OS 307 (B) (4): Confidential communications between a public body and its attorney concerning a pending investigation, claim, or action if the public body, with the advice of its attorney, determines that disclosure will seriously impair the ability of the public body to process the claim or conduct a pending investigation, litigation, or proceeding in the public interest.

Reconvene Council Meeting

Take any action necessary from Executive Session discussion.

The Regular Meeting was reconvened at 8:10 P.M. Mayor Browne reported that the Council had recessed the Regular Meeting for an Executive Session in accordance with Title 25, Section 307.C.11; for the purposes of conferring on matters pertaining to economic development, including the transfer of property, financing, or the creation of a proposal to entice a business to locate within their jurisdiction if public disclosure of the matter discussed would interfere with the development of products or services or if public disclosure would violate the confidentiality of the business and in accordance with Title 25, Section 307.B.4; for confidential communications between a public body and its attorney concerning a pending investigation, claim, or action if the public body, with the advice of its attorney, determines that disclosure will seriously impair the ability of the public body to process the claim or conduct a pending investigation, litigation, or proceeding in the public interest. Only those matters were discussed, no action was taken, and the Council returned to open session at 8:10 P.M., and this constituted the Minutes of the Executive Session.

Adjournment

There being no further business before the Council. Vice-Mayor Smith moved for the meeting to be adjourned. The motion was seconded by Councilman Roden. There was no discussion, and the vote was taken as follows:

AYE: Councilmembers Smith, Roden, Boatright, Beaty, Stone & Mayor Browne
NAY: None



Mayor Browne declared the motion carried, and the meeting was adjourned at 8:11 P.M.


John Browne, Mayor

